RESIDENTIAL HOUSE LEASE AGREEMENT

This Residential House Lease Agreement ("Lease") is made and effective

April 13 2020
date

by and between

Ethan Kunz & Kenia Kunz
landlords (print)

and

Brittin Stevens & Brittany Beene
tenants (print)

1. **PREMISES**.

A. The Landlords agree to rent to the Tenants the municipality located at **308 Jamie Ct Longview, TX 75605**, (the "Premises") for primary use as a residential premise. The Premise is more particularly described as follows: the entire property contained within the property deed and all items located on the property.

B. Subject to the provisions of this Lease, apart from the Tenants and their dependents, no other persons will live in the Premises without the prior consent of the Landlords through some medium of notice, nor will the property be subleased without consent of the Landlord in the same manner.

C. No guest of the Tenants may occupy the Premises without the prior consent of the Landlord if that guest is staying for more than two weeks.

D. No pets or animals can be kept in or about the Premises without prior written consent of the Landlord. As of the date of this contract, the dog/dogs currently owned by the Tenants are allowed inside and outside of the rented property, but no liability is absorbed from an issue arising from problems outside of the owned property by the Landlords.

E. There will be no indoor smoking on the premises other than vaping. If the property becomes such that it requires professional cleaning to remove the odor of smoke inside the home, the Tenants will agree to absorb the cost to clean the property to a reasonable level of neutral odor.

2. **TERM**.

The first term of this Lease shall start on **May 7, 2020.** The first term will cycle on a monthly basis for up to two years from the start date, at which point a second term will be agreed upon. The cycle is stated to give preference to the Tenants for a move out date at any point within the two year term with the only stipulation being a notice given to the Landlords 30 days in advance of movement in order to secure a new tenant. This does not include life-altering emergencies, where it is impossible to manage the 30 day window. Such emergencies include for example: death of a tenant, sudden job loss without notice requiring a quick move, or grave illness.

3. **RENT**.

Rent shall be paid in full at **$1300.00** within the first week of each month. This amount covers only the lease of the Premises and does not include any other fees incurred by living at the property such as utility services. Such fees and services will be selected and maintained by the Tenants. The first rent amount separate from security deposit due will be **$1044.00** in order to reflect the May 6 start date as a twenty percent loss of an average month. Rent will be paid using any method the Tenant chooses, however, methods chosen that cost money in fees to the Landlords will not be allowed unless the Tenants absorb the fee. Also, no method shall be chosen that once posted requires more than a week after the last day of the first week of each month to post. To summarize, all payments must be in the account of the Landlord's within two weeks of the first of the month barring extenuating circumstances agreed upon by Tenants and Landlords. Failure to pay rent within one week of the posted date shall result in a fee of **$156.00** as allowed under Texas law for each two weeks not paid from the first day late. The first late payment will be a warning, and Tenant will be informed of lateness with a 3 day grace period to post payment.

4. **SECURITY DEPOSIT**.

Upon execution of this Lease, Tenants shall deposit with the Landlords **$1000**, as security for the performance by Tenants of the terms of this Lease to be returned to Tenants, without interest, following the full and faithful performance by Tenants of this Lease. In the event of damage to the House caused by Tenants or Tenants' family, agents or visitors, Landlords may use funds from the deposit to repair. If a repair requirement is caused by Tenants that exceeds $1000 and the item is not covered by either home or rental insurance, then the Tenant absorbs the liability of rendering the damage to a previous state within 2 months. Failure to do so will result in a 2 week notice eviction followed by a filing for legal claims.

5. **ASSIGNMENT AND SUBLETTING**.

A. Tenants shall not assign this Lease or sublet or grant any concession or license to use the House or any part of the Premises without Landlords' prior written consent.

B. Any assignment, subletting, concession, or license without the prior written consent of Landlords, or an assignment or subletting by operation of law, shall be void and, at Landlords' option, terminate this Lease. The Tenants will also absorb all liability from damages caused by individuals who were assigned, sublet, conceded, or licensed without approval.

C. If the Tenants decide to allow another family member/s on the premises for the term of this lease, up to two family members can stay in the house for a period of one month without required consent of the Landlords.

6. **ALTERATIONS AND IMPROVEMENTS**.

A. Tenants shall make no alterations to the House or construct any building or make other improvements without the prior written consent of Landlord. This does not include items that are easily changed such as pins to hang pictures, towel racks, shower head adjustments, or other items that can be reversed or altered within one day.

B. All permanent alterations, changes, and improvements built, constructed, or placed on or around the House by Tenants, with the exception of fixtures properly removable without damage to the House and movable personal property, shall, unless otherwise provided by written agreement between Landlords and Tenants, be the property of the Landlords and remain at the expiration or earlier termination of this Lease.

7. **DAMAGE TO PREMISES**.

If the House, or any part of the House, shall be partially damaged by fire or other casualty not due to Tenants' negligence or willful act, or that of Tenants' family, agent, or visitor, there shall be an abatement of rent corresponding with the time during which, and the extent to which, the House is untenantable. If Landlords shall decide not to rebuild or repair, the term of this Lease shall end, and the rent shall be prorated up to the time of the damage.

8. **UTILITIES**.

As mentioned in the section governing rent, all utilities will be covered by the Tenants. Tenants must maintain at the bare minimum a means of trash removal and electricity. This is to ensure that the property is not damaged by infestation or mold due to improper waste removal or a temperature that is left above 80 degrees Fahrenheit in combination with a humidity above 60%. The house will be maintained both above 32 degrees Fahrenheit and below 80 degrees Fahrenheit. If mold accumulates due to improper management of temperature or humidity, the Tenants will be liable for mold remediation.

9. **MAINTENANCE AND REPAIR**.

A. Tenants will keep and maintain the Premises and appliances in good and sanitary condition during the term of this Lease. In particular, Tenants shall, at Tenants' sole expense, make all required repairs to the plumbing, range, oven heating apparatus, electric and gas fixtures, other mechanical devices and systems, floors, lawn, decorative foliage, ceilings and walls whenever damage to such items shall have resulted from Tenant's misuse, waste, or neglect, or that of the Tenants' family, agent, or visitor.

B. Tenants agrees that no signs shall be placed, or painting/remodeling done on or about the House by Tenants without the prior written consent of Landlord.

C. Tenants agrees to promptly notify Landlords in the event of any damage, defect or destruction of the House, or the failure of any of Landlords' appliances or mechanical systems, and except for repairs or replacements that are the obligation of Tenant pursuant to Subsection A above, Landlord shall use its best efforts to repair or replace such damaged or defective area, appliance or mechanical system.

10. **RENTAL INSURANCE**.

Tenants will keep some level of rental insurance. The exact type and amount will not be specified but having a level of personal insurance combined with Landlords' insurance will ensure a much lower risk of issues due to potential damages sustained.

11. **RIGHT OF INSPECTION**.

Landlords and Landlords' agents shall have the right at all reasonable times during the term of this Lease and any renewal of this Lease to enter the house for the purpose of inspecting the Premises and/or making any repairs to the Premises or other item as required under this Lease. Such inspection of the house shall require notification to the Tenants within 24 hours unless there is reasonable suspicion under Texas law that requires prudent examination of the Premise for items of an illegal or maliciously suspicious nature. General inspection around the property that does not cross the fence line or involve home entry will not require notification. If less than 24 hours is given for a home entry, and no items of note are obtained, the Landlords will remove **$200.00** from the bill of the monthly cycle under the month of such inspection in good faith. Regardless of the reason for inspection, a one hour confirmation must be submitted to the Tenants before home entry, and only the Landlords listed on this lease can perform an inspection less than 24 hours in nature. If no confirmation is obtained within 1 hour of a less than 24 hours inspection, then police officials will be contacted, and the issue will become that of a criminal/civil nature in terms of approach and entry to the Premises.

12. **DISPLAY OF SIGNS**.

During the 30 window of a written relinquishment of Tenancy, or within 30 days of the two year mark of this lease, "For Sale" or "For Rent" or "Vacancy" or similar signs may be placed by Landlords on or about the House and entry to show the House to prospective purchasers or tenants may be accomplished by Landlords with proper notification to current Tenants.

13. **HOLDOVER BY TENANT**.

Should Tenants remain in possession of the House with the consent of Landlords after the expiration of the Term of this Lease, a new tenancy shall be created which shall be subject to all the terms and conditions of this Lease, plus any additional agreed upon at such time. If Tenant holds over without Landlord's consent, Landlord is entitled to the maximum penalty allowed by Texas law per day/week/month until Tenant leaves the House and Premises.

14. **SURRENDER OF PREMISES**.

At the expiration of the Lease, Tenant shall quit and surrender the House in as good a condition as it was at the commencement of this Lease, reasonable wear and tear and damages by the elements excepted. Examples of reasonable wear include fading of the carpet, minor scrapes to paint no more than one inch that can be repaired with paint, broken blinds from age and sun damage, death of plants on Premises, broken down insulation in the attic etc.

15. **FORFEITURE OF SECURITY DEPOSIT - DEFAULT**.

It is understood and agreed that Tenants shall not attempt to apply or deduct any portion of any security deposit from the last or any month's rent or use or apply any such security deposit at any time in lieu of payment of rent. If Tenant fails to comply, such security deposit shall be forfeited, and Landlords may recover the rent due as if any such deposit had not been applied or deducted from the rent due. For the purposes of this paragraph, it shall be conclusively presumed that a Tenants leaving the Premises while owing rent is making an attempted deduction of deposits. Furthermore, any deposit shall be held as a guarantee that Tenants shall perform the obligations of the Lease and shall be forfeited by the Tenants should Tenants breach any of the terms and conditions of this Lease. In the event of default, by Tenants, of any obligation in this Lease which is not cured by Tenant within fifteen (15) days notice from Landlord, then in addition to forfeiture of the Security Deposit, Landlords may pursue any other remedy available at Texas and federal law, equity or otherwise.

16. **ABANDONMENT**.

If at any time during the term of this Lease, Tenants abandons the House or any of Tenants' personal property in or about the House, Landlords shall have the following rights: Landlords may, at Landlords' option, enter the House by any means without liability to Tenant for damages and may relet the House, for the whole or any part of the then unexpired term, and may receive and collect all rent payable by virtue of such reletting; Also, at Landlord's option, Landlords may hold Tenants liable for any difference between the rent that would have been payable under this Lease during the balance of the unexpired term, if this Lease had continued in force, and the net rent for such period realized by Landlords by means of such reletting. Landlords may also dispose of any of Tenants' abandoned personal property as Landlords deems appropriate, without liability to Tenants. Landlords are entitled to presume that Tenants have abandoned the House if Tenants remove substantially all of Tenants' furnishings and personal possessions from the House, if the House is suddenly unoccupied for a period of two (2) consecutive weeks—outside of vacation or business related travel, or if it would otherwise be reasonable for Landlords to presume under the circumstances that the Tenants have abandoned the House.

17. **SECURITY**.

Tenant acknowledges that Landlord does not provide a security alarm system or any security for the House or for Tenants and that any such alarm system or security service, if provided, is not represented or warranted to be complete in all respects or to protect Tenants from all harm. Tenants hereby release Landlords from any loss, suit, claim, charge, damage or injury resulting from lack of security or failure of security. This is mitigated by the requirement of rental insurance.

23. **GOVERNING LAW.**

It is agreed that this Lease shall be governed by, construed, and enforced in accordance with the laws of the **State of Texas**.

24. **ENTIRE AGREEMENT.**

This Lease shall constitute the entire agreement between the parties. Any prior understanding or representation of any kind preceding the date of this Lease is hereby superseded. This Lease may be modified only by a writing signed by both Landlords and Tenants. Such modification would then be noted as an addendum to this lease and follow any subsequent leases in later potential terms.

25. **NOTICES.**

Any notice required or otherwise given pursuant to this Lease shall be in the form of email, recorded phone call, or writing; hand delivered, mailed certified return receipt requested, postage prepaid, or delivered by overnight delivery service, if to Tenant, at the House and if to Landlord, at the address for payment of rent.

IN WITNESS WHEREOF, the parties have caused this Lease to be executed the day and year first above written. Landlords can be contacted at ethankunz@letu.edu, kenia.j.kunz@gmail.com, and at 417-920-6774

landlord (signature)

landlord (signature) 2nd

tenant (signature)

tenant (signature)

April 13 2020
date